



General Assembly

***Senate Joint
Resolution No. 38***

February Session, 2026

LCO No. 2145



Referred to Committee on GOVERNMENT ADMINISTRATION
AND ELECTIONS

Introduced by:
(GAE)

***RESOLUTION PROPOSING AN AMENDMENT TO THE STATE
CONSTITUTION TO MAKE REFERENCES TO INDIVIDUALS GENDER-
NEUTRAL.***

Resolved by this Assembly:

1 That the following be proposed as an amendment to the Constitution
2 of the State, which, when approved and adopted in the manner
3 provided by the Constitution, shall, to all intents and purposes, become
4 a part thereof:

5 Section 1. Section 1 of article first of the Constitution is amended to
6 read as follows:

7 All [men] persons when they form a social compact, are equal in
8 rights; and no [man] person or set of [men] persons are entitled to
9 exclusive public emoluments or privileges from the community.

10 Sec. 2. Section 4 of article first of the Constitution is amended to read
11 as follows:

12 Every citizen may freely speak, write and publish [his] such citizen's

13 sentiments on all subjects, being responsible for the abuse of that liberty.

14 Sec. 3. Subsection a. of article twenty-ninth of the amendments to the
15 Constitution is amended to read as follows:

16 a. In all criminal prosecutions, the accused shall have a right to be
17 heard by [himself] the accused's self and by counsel; to be informed of
18 the nature and cause of the accusation; to be confronted by the witnesses
19 against [him] the accused; to have compulsory process to obtain
20 witnesses in [his] behalf of the accused; to be released on bail upon
21 sufficient security, except in capital offenses, where the proof is evident
22 or the presumption great; and in all prosecutions by information, to a
23 speedy, public trial by an impartial jury. No person shall be compelled
24 to give evidence against [himself] such person's self, nor be deprived of
25 life, liberty or property without due process of law, nor shall excessive
26 bail be required nor excessive fines imposed. No person shall be held to
27 answer for any crime, punishable by death or life imprisonment, unless
28 upon probable cause shown at a hearing in accordance with procedures
29 prescribed by law, except in the armed forces, or in the militia when in
30 actual service in time of war or public danger.

31 Sec. 4. Section 10 of article first of the Constitution is amended to read
32 as follows:

33 All courts shall be open, and every person, for an injury done to [him
34 in his] such person, such person's property or such person's reputation,
35 shall have remedy by due course of law, and right and justice
36 administered without sale, denial or delay.

37 Sec. 5. Section 15 of article first of the Constitution is amended to read
38 as follows:

39 Every citizen has a right to bear arms in defense of [himself] such
40 citizen and the state.

41 Sec. 6. Article fourth of the amendments to the Constitution is
42 amended to read as follows:

43 The right of trial by jury shall remain inviolate, the number of such
44 jurors, which shall not be less than six, to be established by law; but no
45 person shall, for a capital offense, be tried by a jury of less than twelve
46 jurors without [his] such person's consent. In all civil and criminal
47 actions tried by a jury, the parties shall have the right to challenge jurors
48 peremptorily, the number of such challenges to be established by law.
49 The right to question each juror individually by counsel shall be
50 inviolate.

51 Sec. 7. Article twenty-first of the amendments to the Constitution is
52 amended to read as follows:

53 No person shall be denied the equal protection of the law nor be
54 subjected to segregation or discrimination in the exercise or enjoyment
55 of [his or her] such person's civil or political rights because of religion,
56 race, color, ancestry, national origin, sex or physical or mental disability.

57 Sec. 8. Article third of the amendments to the Constitution is
58 amended to read as follows:

59 There shall be a regular session of the general assembly on the
60 Wednesday following the first Monday of January in the odd-numbered
61 years and on the Wednesday following the first Monday of February in
62 the even-numbered years, and at such other times as the general
63 assembly shall judge necessary; but the person administering the office
64 of governor may, on special emergencies, convene the general assembly
65 at any other time. All regular and special sessions of the general
66 assembly shall be held at Hartford, but the person administering the
67 office of governor may, in case of special emergency, convene the
68 assembly at any other place in the state. The general assembly shall
69 adjourn each regular session in the odd-numbered years not later than
70 the first Wednesday after the first Monday in June and in the even-
71 numbered years not later than the first Wednesday after the first
72 Monday in May and shall adjourn each special session upon completion
73 of its business. If any bill passed by any regular or special session or any
74 appropriation item described in Section 16 of Article Fourth has been
75 disapproved by the governor prior to its adjournment, and has not been

76 reconsidered by the assembly, or is so disapproved after such
77 adjournment, the secretary of the state shall reconvene the general
78 assembly on the second Monday after the last day on which the
79 governor is authorized to transmit or has transmitted every bill to the
80 secretary with [his] the governor's objections pursuant to Section 15 of
81 Article Fourth of this constitution, whichever occurs first; provided if
82 such Monday falls on a legal holiday the general assembly shall be
83 reconvened on the next following day. The reconvened session shall be
84 for the sole purpose of reconsidering and, if the assembly so desires,
85 repassing such bills. The general assembly shall adjourn sine die not
86 later than three days following its reconvening. In the even year session
87 the general assembly shall consider no business other than budgetary,
88 revenue and financial matters, bills and resolutions raised by
89 committees of the general assembly and those matters certified in
90 writing by the speaker of the house of representatives and president pro
91 tempore of the senate to be of an emergency nature.

92 Sec. 9. Section 1 of article fifteenth of the amendments to the
93 Constitution is amended to read as follows:

94 The senate shall consist of not less than thirty and not more than fifty
95 members, each of whom shall have attained the age of eighteen and be
96 an elector residing in the senatorial district from which [he] such elector
97 is elected. Each senatorial district shall be contiguous as to territory and
98 shall elect no more than one senator.

99 Sec. 10. Section 2 of article fifteenth of the amendments to the
100 Constitution is amended to read as follows:

101 The house of representatives shall consist of not less than one
102 hundred twenty-five and not more than two hundred twenty-five
103 members, each of whom shall have attained the age of eighteen years
104 and be an elector residing in the assembly district from which [he] such
105 elector is elected. Each assembly district shall be contiguous as to
106 territory and shall elect no more than one representative. For the
107 purpose of forming assembly districts no town shall be divided except
108 for the purpose of forming assembly districts wholly within the town.

109 Sec. 11. Section 2 of article thirtieth of the amendments to the
110 Constitution is amended to read as follows:

111 a. The assembly and senatorial districts and congressional districts as
112 now established by law shall continue until the regular session of the
113 general assembly next after the completion of the taking of the next
114 census of the United States. On or before the fifteenth day of February
115 next following the year in which the decennial census of the United
116 States is taken, the general assembly shall appoint a reapportionment
117 committee consisting of four members of the senate, two who shall be
118 designated by the president pro tempore of the senate and two who
119 shall be designated by the minority leader of the senate, and four
120 members of the house of representatives, two who shall be designated
121 by the speaker of the house of representatives and two who shall be
122 designated by the minority leader of the house of representatives,
123 provided there are members of no more than two political parties in
124 either the senate or the house of representatives. In the event that there
125 are members of more than two political parties in a house of the general
126 assembly, all members of that house belonging to the parties other than
127 that of the president pro tempore of the senate or the speaker of the
128 house of representatives, as the case may be, shall select one of their
129 number, who shall designate two members of the committee in lieu of
130 the designation by the minority leader of that house. Such committee
131 shall advise the general assembly on matters of apportionment. Upon
132 the filing of a report of such committee with the clerk of the house of
133 representatives and the clerk of the senate, the speaker of the house of
134 representatives and the president pro tempore of the senate shall, if the
135 general assembly is not in regular session, convene the general assembly
136 in special session for the sole purpose of adopting a plan of districting.
137 Upon the request of the speaker of the house of representatives and the
138 president pro tempore of the senate, the secretary of the state shall give
139 notice of such special session by mailing a true copy of the call of such
140 special session, by registered or certified mail, return receipt requested,
141 to each member of the house of representatives and of the senate at [his
142 or her] such member's address as it appears upon the records of said
143 secretary not less than ten nor more than fifteen days prior to the date

144 of convening of such special session or by causing a true copy of the call
145 to be delivered to each member by a constable, state policeman or
146 indifferent person at least twenty-four hours prior to the time of
147 convening of such special session. Such general assembly shall, upon
148 roll call, by a yea vote of at least two-thirds of the membership of each
149 house, adopt such plan of districting as is necessary to preserve a proper
150 apportionment of representation in accordance with the principles
151 recited in this article. Thereafter the general assembly shall decennially
152 at its next regular session or special session called for the purpose of
153 adopting a plan of districting following the completion of the taking of
154 the census of the United States, upon roll call, by a yea vote of at least
155 two-thirds of the membership of each house, adopt such plan of
156 districting as is necessary in accordance with the provisions of this
157 article.

158 Sec. 12. Section 11 of article third of the Constitution is amended to
159 read as follows:

160 No member of the general assembly shall, during the term for which
161 [he] such member is elected, hold or accept any appointive position or
162 office in the judicial or executive department of the state government, or
163 in the courts of the political subdivisions of the state, or in the
164 government of any county. No member of congress, no person holding
165 any office under the authority of the United States and no person
166 holding any office in the judicial or executive department of the state
167 government or in the government of any county shall be a member of
168 the general assembly during [his] such member's or person's
169 continuance in such office.

170 Sec. 13. Section 9 of article fourth of the Constitution is amended to
171 read as follows:

172 [He] The governor may require information in writing from the
173 officers in the executive department, on any subject relating to the duties
174 of their respective offices.

175 Sec. 14. Section 10 of article fourth of the Constitution is amended to

176 read as follows:

177 The governor, in case of a disagreement between the two houses of
178 the general assembly, respecting the time of adjournment, may adjourn
179 them to such time as [he] the governor shall think proper, not beyond
180 the day of the next stated session.

181 Sec. 15. Section 11 of article fourth of the Constitution is amended to
182 read as follows:

183 [He] The governor shall, from time to time, give to the general
184 assembly, information of the state of the government, and recommend
185 to their consideration such measures as [he] the governor shall deem
186 expedient.

187 Sec. 16. Section 12 of article fourth of the Constitution is amended to
188 read as follows:

189 [He] The governor shall take care that the laws be faithfully executed.

190 Sec. 17. Section 15 of article fourth of the Constitution is amended to
191 read as follows:

192 Each bill which shall have passed both houses of the general
193 assembly shall be presented to the governor. Bills may be presented to
194 the governor after the adjournment of the general assembly, and the
195 general assembly may prescribe the time and method of performing all
196 ministerial acts necessary or incidental to the administration of this
197 section. If the governor shall approve a bill, [he] the governor shall sign
198 and transmit it to the secretary of the state, but if [he] the governor shall
199 disapprove, [he] the governor shall transmit it to the secretary with [his]
200 the governor's objections, and the secretary shall thereupon return the
201 bill with the governor's objections to the house in which it originated.
202 After the objections shall have been entered on its journal, such house
203 shall proceed to reconsider the bill. If, after such reconsideration, that
204 house shall again pass it, but by the approval of at least two-thirds of its
205 members, it shall be sent with the objections to the other house, which
206 shall also reconsider it. If approved by at least two-thirds of the

207 members of the second house, it shall be a law and be transmitted to the
208 secretary; but in such case the votes of each house shall be determined
209 by yeas and nays and the names of the members voting for and against
210 the bill shall be entered on the journal of each house respectively. In case
211 the governor shall not transmit the bill to the secretary, either with [his]
212 the governor's approval or with [his] the governor's objections, within
213 five calendar days, Sundays and legal holidays excepted, after the same
214 shall have been presented to [him] the governor, it shall be a law at the
215 expiration of that period; except that, if the general assembly shall then
216 have adjourned any regular or special session, the bill shall be a law
217 unless the governor shall, within fifteen calendar days after the same
218 has been presented to [him] the governor, transmit it to the secretary
219 with [his] the governor's objections, in which case it shall not be a law
220 unless such bill is reconsidered and repassed by the general assembly
221 by at least a two-thirds vote of the members of each house of the general
222 assembly at the time of its reconvening.

223 Sec. 18. Section 16 of article fourth of the Constitution is amended to
224 read as follows:

225 The governor shall have power to disapprove of any item or items of
226 any bill making appropriations of money embracing distinct items
227 while at the same time approving the remainder of the bill, and the part
228 or parts of the bill so approved shall become effective and the item or
229 items of appropriations so disapproved shall not take effect unless the
230 same are separately reconsidered and repassed in accordance with the
231 rules and limitations prescribed for the passage of bills over the
232 executive veto. In all cases in which the governor shall exercise the right
233 of disapproval hereby conferred, [he] the governor shall append to the
234 bill at the time of signing it a statement of the item or items disapproved,
235 together with [his] the governor's reasons for such disapproval, and
236 transmit the bill and such appended statement to the secretary of the
237 state. If the general assembly be then in session, [he] the governor shall
238 forthwith cause a copy of such statement to be delivered to the house in
239 which the bill originated for reconsideration of the disapproved items
240 in conformity with the rules prescribed for legislative action in respect

241 to bills which have received executive disapproval.

242 Sec. 19. Section 17 of article fourth of the Constitution is amended to
243 read as follows:

244 The lieutenant-governor shall by virtue of [his] such office, be
245 president of the senate, and have, when in committee of the whole, a
246 right to debate, and when the senate is equally divided, to give the
247 casting vote.

248 Sec. 20. Article twenty-second of the amendments to the Constitution
249 is amended to read as follows:

250 a. In case of the death, resignation, refusal to serve or removal from
251 office of the governor, the lieutenant-governor shall, upon taking the
252 oath of office of governor, be governor of the state until another is
253 chosen at the next regular election for governor and is duly qualified.

254 b. In case of the impeachment of the governor or of [his] the
255 governor's absence from the state, the lieutenant-governor shall exercise
256 the powers and authority and perform the duties appertaining to the
257 office of governor until, if the governor has been impeached, [he] the
258 governor is acquitted or, if absent, [he] the governor has returned.

259 c. Whenever the governor transmits to the lieutenant-governor [his]
260 the governor's written declaration that [he] the governor is unable to
261 exercise the powers and perform the duties of [his] the office of
262 governor, and until the governor transmits to the lieutenant-governor a
263 written declaration to the contrary, the lieutenant-governor shall
264 exercise the powers and authority and perform the duties appertaining
265 to the office of governor as acting governor.

266 d. In the absence of a written declaration of incapacity by the
267 governor, whenever the lieutenant-governor or a majority of the
268 members of the council on gubernatorial incapacity transmits to the
269 council on gubernatorial incapacity a written declaration that the
270 governor is unable to exercise the powers and perform the duties of [his]
271 the office of governor, the council shall convene within forty-eight hours

272 after the receipt of such written declaration to determine if the governor
273 is unable to exercise the powers and perform the duties of [his] the office
274 of governor. If the council, within fourteen days after it is required to
275 convene, determines by two-thirds vote that the governor is unable to
276 exercise the powers and perform the duties of [his] the office of
277 governor, it shall transmit a written declaration to that effect to the
278 president pro tempore of the senate and the speaker of the house of
279 representatives and to the lieutenant-governor and the lieutenant-
280 governor, upon receipt of such declaration, shall exercise the powers
281 and authority and discharge the duties appertaining to the office of the
282 governor as acting governor; otherwise, the governor shall continue to
283 exercise the powers and discharge the duties of [his] the office of
284 governor. Upon receipt by the president pro tempore of the senate and
285 the speaker of the house of representatives of such a written declaration
286 from the council, the general assembly shall, in accordance with its
287 rules, decide the issue, assembling within forty-eight hours for that
288 purpose if not in session. If the general assembly, within twenty-one
289 days after receipt of the written declaration or, if the general assembly
290 is not in session, within twenty-one days after the general assembly is
291 required to assemble, determines by two-thirds vote of each house that
292 the governor is unable to exercise the powers and discharge the duties
293 of [his] the office of governor, the lieutenant-governor shall continue to
294 exercise the powers and authority and perform the duties appertaining
295 to the office of governor; otherwise, the governor shall resume the
296 powers and duties of [his] the office of governor.

297 e. In the absence of a written declaration of incapacity by the governor
298 and in an emergency, when the governor is unable to exercise the
299 powers and perform the duties of [his] the office of governor and the
300 business of the state requires the immediate exercise of those powers
301 and performance of those duties, the lieutenant-governor shall transmit
302 to the council on gubernatorial incapacity a written declaration to that
303 effect and thereupon shall exercise the powers and authority and
304 discharge the duties appertaining to the office of governor as acting
305 governor. The council shall convene or the members of the council shall
306 otherwise communicate with each other collectively within twenty-four

307 hours after the receipt of such written declaration to determine if the
308 governor is unable to exercise the powers and perform the duties of [his]
309 the office of governor. If the council, within fourteen days after it is
310 required to convene, determines by two-thirds vote that the governor is
311 unable to exercise the powers and perform the duties of [his] the office
312 of governor, it shall transmit a written declaration to that effect to the
313 president pro tempore of the senate and the speaker of the house of
314 representatives and to the lieutenant-governor and the lieutenant-
315 governor shall continue to exercise the powers and authority and
316 perform the duties appertaining to the office of governor as acting
317 governor; otherwise, the governor shall resume the powers and duties
318 of [his] the office of governor. Upon receipt by the president pro
319 tempore of the senate and the speaker of the house of representatives of
320 such a written declaration from the council, the general assembly shall,
321 in accordance with its rules, decide the issue, assembling within forty-
322 eight hours for that purpose if not in session. If the general assembly,
323 within twenty-one days after receipt of the written declaration or, if the
324 general assembly is not in session, within twenty-one days after the
325 general assembly is required to assemble, determines by two-thirds vote
326 of each house that the governor is unable to exercise the powers and
327 discharge the duties of [his] the office of governor, the lieutenant-
328 governor shall continue to exercise the powers and authority and
329 perform the duties appertaining to the office of governor; otherwise, the
330 governor shall resume the powers and duties of [his] the office of
331 governor.

332 f. Whenever the governor transmits to the president pro tempore of
333 the senate and the speaker of the house of representatives [his] the
334 governor's written declaration that no inability exists, [he] the governor
335 shall resume the powers and duties of [his] the office of governor upon
336 the determination by a majority vote of each house of the general
337 assembly, in accordance with its rules, that [he] the governor is able to
338 exercise the powers and perform the duties of [his] the office of
339 governor.

340 g. There shall be a council on gubernatorial incapacity, the

341 membership, procedures and terms of office of the members of which
342 the general assembly shall establish by law.

343 h. The supreme court shall have original and exclusive jurisdiction to
344 adjudicate disputes or questions arising under this section.

345 Sec. 21. Section 19 of article fourth of the Constitution is amended to
346 read as follows:

347 If the lieutenant-governor succeeds to the office of governor, or if the
348 lieutenant-governor dies, resigns, refuses to serve or is removed from
349 office, the president pro tempore of the senate shall, upon taking the
350 oath of office of lieutenant-governor, be lieutenant-governor of the state
351 until another is chosen at the next regular election for lieutenant-
352 governor and is duly qualified. Within fifteen days of the administration
353 of such oath the senate, if the general assembly is in session, shall elect
354 one of its members president pro tempore. In case of the inability of the
355 lieutenant-governor to exercise the powers and perform the duties of
356 [his] the office of lieutenant-governor or in case of [his] the lieutenant-
357 governor's impeachment or absence from the state, the president pro
358 tempore of the senate shall exercise the powers and authority and
359 perform the duties appertaining to the office of lieutenant-governor
360 until the disability is removed or, if the lieutenant-governor has been
361 impeached, [he] the lieutenant-governor is acquitted or, if absent, [he]
362 the lieutenant-governor has returned.

363 Sec. 22. Section 22 of article fourth of the Constitution is amended to
364 read as follows:

365 The treasurer shall receive all moneys belonging to the state, and
366 disburse the same only as [he] the treasurer may be directed by law. [He]
367 The treasurer shall pay no warrant, or order for the disbursement of
368 public money, until the same has been registered in the office of the
369 comptroller.

370 Sec. 23. Section 23 of article fourth of the Constitution is amended to
371 read as follows:

372 The secretary of the state shall have the safe keeping and custody of
373 the public records and documents, and particularly of the acts,
374 resolutions and orders of the general assembly, and record the same;
375 and perform all such duties as shall be prescribed by law. [He] The
376 secretary of the state shall be the keeper of the seal of the state, which
377 shall not be altered.

378 Sec. 24. Section 24 of article fourth of the Constitution is amended to
379 read as follows:

380 The comptroller shall adjust and settle all public accounts and
381 demands, except grants and orders of the general assembly. [He] The
382 comptroller shall prescribe the mode of keeping and rendering all public
383 accounts. [He] The comptroller shall, ex officio, be one of the auditors of
384 the accounts of the treasurer. The general assembly may assign to [him]
385 the comptroller other duties in relation to [his] the comptroller's office,
386 and to that of the treasurer, and shall prescribe the manner in which
387 [his] the comptroller's duties shall be performed.

388 Sec. 25. Section 2 of article eight of the amendments to the
389 Constitution is amended to read as follows:

390 No judge shall be eligible to hold [his] such judge's office after [he]
391 such judge shall arrive at the age of seventy years, except that a chief
392 justice or judge of the supreme court, a judge of the superior court, or a
393 judge of the court of common pleas, who has attained the age of seventy
394 years and has become a state referee may exercise, as shall be prescribed
395 by law, the powers of the superior court or court of common pleas on
396 matters referred to [him] such justice or judge, as applicable, as a state
397 referee.

398 Sec. 26. Article ninth of the amendments to the Constitution is
399 amended to read as follows:

400 Every citizen of the United States who has attained the age of
401 eighteen years, who is a bona fide resident of the town in which [he]
402 such citizen seeks to be admitted as an elector and who takes such oath,

403 if any, as may be prescribed by law, shall be qualified to be an elector.

404 Sec. 27. Article thirty-first of the amendments to the Constitution is
405 amended to read as follows:

406 Any citizen who will have attained the age of eighteen years on or
407 before the day of a regular election may apply for admission as an
408 elector at such times and in such manner as may be prescribed by law,
409 and, if qualified, shall become an elector on the day of [his or her] such
410 citizen's eighteenth birthday. Any citizen who has not yet attained the
411 age of eighteen years but who will have attained the age of eighteen
412 years on or before the day of a regular election, who is otherwise
413 qualified to be an elector and who has applied for admission as an
414 elector in such manner as may be prescribed by law, may vote in any
415 primary election, in such manner as may be prescribed by law, held for
416 such regular election.

417 Sec. 28. Article seventh of the Constitution is amended to read as
418 follows:

419 It being the right of all [men] persons to worship the Supreme Being,
420 the Great Creator and Preserver of the Universe, and to render that
421 worship in a mode consistent with the dictates of their consciences, no
422 person shall by law be compelled to join or support, nor be classed or
423 associated with, any congregation, church or religious association. No
424 preference shall be given by law to any religious society or
425 denomination in the state. Each shall have and enjoy the same and equal
426 powers, rights and privileges, and may support and maintain the
427 ministers or teachers of its society or denomination, and may build and
428 repair houses for public worship.

429 Sec. 29. Article nineteenth of the amendments to the Constitution is
430 amended to read as follows:

431 Except as provided in this section, neither the state nor any political
432 subdivision of the state shall pay or grant to any elected official of the
433 state or any political subdivision of the state, any compensation greater

434 than the amount of compensation set at the beginning of such official's
435 term of office for the office which such official holds or increase the pay
436 or compensation of any public contractor above the amount specified in
437 the contract. The provisions of this section shall not apply to elected
438 officials in towns in which the legislative body is the town meeting. The
439 compensation of an elected official of a political subdivision of the state
440 whose term of office is four years or more may be increased once after
441 such official has completed two years of [his] such official's term by the
442 legislative body of such political subdivision. The term "compensation"
443 means, with respect to an elected official, such official's salary, exclusive
444 of reimbursement for necessary expenses or any other benefit to which
445 [his] such official's office would entitle [him] such official.

446 RESOLVED: That the foregoing proposed amendment to the
447 Constitution be continued to the next session of the General Assembly
448 elected at the general election to be held on November 3, 2026, and
449 published with the laws passed at the present session, or be presented
450 to the electors at the general election to be held on November 3, 2026,
451 whichever the case may be, according to article sixth of the amendments
452 to the Constitution. The designation of said proposed amendment to be
453 used on the ballots at such election shall be "Shall the Constitution of the
454 State be amended to make all references to individuals gender-neutral?"